

Kenneth Baron, et al. v. State of California, et al., 23CV-0762

Hearing: Demurrer

Date: September 9, 2026

Kenneth Baron and Stevon Gordon filed this action on December 29, 2023, against the State of California, the California Department of Corrections and Rehabilitation, the County of San Luis Obispo, the California Men’s Colony (the Men’s Colony or the CMC), Warden Danny Samuel, Dr. Camilo Guiang, and Kenyatta Henderson (Doe 1). The complaint alleges Dr. Guiang inappropriately touched Plaintiffs’ genitalia and spoke to them inappropriately during medical examinations at the CMC. The complaint further alleges Plaintiffs raised these issues through the proper channels, but no action was taken until many other inmates made similar complaints, at which point Dr. Guiang was transferred.

This action, which had been removed to federal court due to the inclusion of claims arising under federal law, was remanded back to this state court in February 2025. The Order of Remand states the parties filed a stipulation to dismiss the federal claims. (Remand filed 02/13/25, p. 2; Evid. Code, § 452(d).) Plaintiff is directed to file a declaration attaching a certified or conformed copy of that stipulation with this Court.¹

On calendar is the Men’s Colony’s demurrer to the entirety of the complaint on the grounds that it fails to state a cause of action. (Code Civ. Proc., § 430.10(e).) The Men’s Colony argues it is immune from liability under the Government Claims Act (the Act) (Gov. Code, § 810 et seq.),² specifically section 844.6.

The Act “sets out a comprehensive scheme of liability and immunity statutes that govern actions against public entities.” (*State Dept. of State Hospitals v. Superior Court* (2022) 84 Cal.App.5th 1069, 1073 (*Doe*).) A public entity is not liable for injury except as expressly provided by statute. (§ 815, subd. (a).) Under section 815.2, a public entity may be vicariously liable for injury caused by an act or omission of its employees acting within the scope of their employment.

“However, even if a public entity may be sued under a liability statute, the Act also includes immunity provisions that prevail in specified circumstances.” (*Ibid.*) One such immunity statute is section 844.6, which provides with certain exceptions not relevant here, that a public entity is not liable for an injury to any prisoner.

¹ The opening brief filed in support of the demurrer by the Men’s Colony did not include exhibit A (the stipulation) nor any request to take judicial notice of that court record if it had been provided. (Dem., p. 2, fn. 1; Code Civ. Proc., § 430.30.)

² All statutory references are to the Government Code unless otherwise stated.

The Act applies to statutory imposed liability and does not apply to governmental liability arising out of the state or federal Constitutions. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 370.) The complaint includes claims arising under both (third and fourth causes of action), as well as a violation of the United Nations Declaration of Human Rights (second cause of action).

“If there are several causes of action in the complaint, a demurrer to the entire complaint may be overruled if *any* cause of action is properly stated.” (Edmon & Karnow, Cal. Practice Guide: Civil Proc. Before Trial (The Rutter Group 2026) ¶ 7:105, citing *Warren v. Atchinson, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 29.) The demurrer fails to separately address these causes of action and how section 844.6 applies to those claims. The demurrer is therefore overruled.

Plaintiffs for their part fail to cite any legal authority (other than that concerning general demurrer standards) which would overcome the section 844.6 defense with respect to its tort based claims.

ORDER

The CMC’s demurrer to the entirety of the complaint is overruled. The Men’s Colony is to file an answer within ten (10) days from service of the notice of ruling. (Code Civ. Proc., § 472b; Cal. Rules of Court, rule 3.1320(g).) Plaintiffs are to serve the notice of ruling. (Code Civ. Proc., § 1019.5.)

The Order of Remand is the only document that the federal court clerk is required to transmit to the state court. (28 U.S.C. § 1447(c).) The parties are directed to file a declaration from counsel attaching certified or conformed copies of any records from the federal court action (Case No. 2:24-cv-05894-WLH-PVC) which should be included in the record of this action.